

MUTUAL NON-DISCLOSURE AGREEMENT

(Confidential — For Authorized Parties Only)

This Mutual Non-Disclosure Agreement ("Agreement") is entered into as of **April 17, 2025** ("Effective Date"), by and between:

DISCLOSING PARTY A	DISCLOSING PARTY B
MetroGen Health Systems 7800 Silicon Way, San Jose, CA 95110 a Delaware corporation	Eclipse Software Inc. 9000 Biotech Lane, San Diego, CA 92121 a New York limited liability company

1. PURPOSE

The Parties wish to explore a potential business relationship involving the negotiating a supply chain partnership for advanced semiconductor components (the "Purpose"). In connection with the Purpose, each Party may disclose to the other certain confidential and proprietary information. The Parties desire to protect such information from unauthorized use and disclosure.

2. DEFINITION OF CONFIDENTIAL INFORMATION

As used herein, "Confidential Information" means any and all information or data that has or could have commercial value or other utility in the business in which the disclosing Party is engaged, including but not limited to: trade secrets, know-how, inventions, technical data, engineering and technical drawings, product plans, research and development activities, financial information, marketing plans, business strategies, customer lists, supplier information, pricing, and any information designated as confidential by the disclosing Party at the time of disclosure. Confidential Information does not include information that: (a) is or becomes publicly known through no act or omission of the receiving Party; (b) was rightfully in the receiving Party's possession prior to disclosure; (c) is rightfully obtained by the receiving Party from a third party without restriction; or (d) is independently developed by the receiving Party without use of or reference to the disclosing Party's Confidential Information.

3. OBLIGATIONS OF RECEIVING PARTY

Each Party, as a receiving party, agrees to: (a) hold the Confidential Information in strict confidence using at least the same degree of care it uses to protect its own confidential information, but no less than reasonable care; (b) not disclose the Confidential Information to any third party without the prior written consent of the disclosing Party; (c) use the Confidential Information solely for the Purpose; and (d) limit access to the Confidential Information to its employees, directors, officers, advisors, and representatives who have a need to know such information for the Purpose and who are bound by confidentiality obligations no less restrictive than those herein.

4. TERM AND TERMINATION

This Agreement shall commence on the Effective Date and continue for a period of three (3) years, unless earlier terminated by either Party upon thirty (30) days' written notice to the other Party. The obligations of confidentiality shall survive termination or expiration of this Agreement for a period of five (5) years from the date of disclosure of the relevant Confidential Information.

5. RETURN OR DESTRUCTION OF INFORMATION

Upon request by the disclosing Party or upon termination of this Agreement, the receiving Party shall promptly return or, at the disclosing Party's election, destroy all tangible materials embodying the Confidential Information, including all copies, notes, and summaries thereof. The receiving Party shall certify in writing such destruction upon request.

6. REMEDIES

Each Party acknowledges that any breach or threatened breach of this Agreement may cause irreparable harm to the other Party for which monetary damages would be an inadequate remedy, and that the non-breaching Party shall be entitled to seek equitable relief, including injunction and specific performance, without the necessity of proving actual damages or posting a bond, in addition to all other remedies available at law or in equity.

7. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of law provisions. Any dispute arising out of or relating to this Agreement shall be resolved by binding arbitration administered by the American Arbitration Association (AAA) under its Commercial Arbitration Rules, with proceedings conducted in Wilmington, Delaware. Judgment on the arbitration award may be entered in any court of competent jurisdiction.

8. GENERAL PROVISIONS

This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior and contemporaneous agreements, understandings, and negotiations. This Agreement may not be amended except by a written instrument signed by both Parties. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall remain in full force and effect. Neither Party may assign this Agreement without the prior written consent of the other Party. This Agreement may be executed in counterparts, including electronic signatures, each of which shall be deemed an original.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

MetroGen

Eclipse

Signature: _____
Name: Jeffrey Wilson
Title: Chief Technology Officer
Date: _____

Signature: _____
Name: Betty Rivera
Title: Head of Legal
Date: _____